

Draft Complaint - 2026 USPS Election-Mail Litigation (Attorney Review Only)

UNITED STATES DISTRICT COURT [DISTRICT TO BE DETERMINED BY COUNSEL]

RALPH BURTON HARRIS III,

Plaintiff,

v. Civil Action No. [TO BE ASSIGNED]

[STATE DEFENDANTS — NOT YET IDENTIFIED], DNC SERVICES CORPORATION, d/b/a the Democratic National Committee, [COMPLIANCE/FUNDRAISING-COMPANY DEFENDANTS — NOT YET IDENTIFIED], K&H PRINTERS, INC. (or its correct corporate name), MAIL KING USA (or its correct corporate name), LITHTEX NORTHWEST (or its correct corporate name), RUNBECK ELECTION SERVICES (or its correct corporate name), PROFORMA / MIDWEST DIRECT (or its correct corporate name),
Defendants.

DRAFT COMPLAINT — PREPARED FOR ATTORNEY REVIEW ONLY

THIS IS NOT A FILED PLEADING AND IS NOT LEGAL ADVICE

Status: **Draft v1** — companion document to `civil-rico-and-qui-tam-2026-postal-litigation.md` (the “Background Report”), which remains the primary source of record for every citation used here. This document restructures that same research into the numbered-paragraph format of a federal civil complaint (Fed. R. Civ. P. 10(b)) **purely as an organizational tool** to help Mr. Kirk evaluate the claims side-by-side with the elements they would need to satisfy — it is not drafted for filing, has not been reviewed by any attorney, and should not be treated as asserting that any count below is viable, well-pleaded, or supported by evidence sufficient to survive a motion to dismiss.

Prepared by: Ralph Burton Harris III. **Prepared for:** William K. “Bill” Kirk, President, Washington Gun Law (Spokane, WA).¹

¹See Background Report at n.13 (Attorney Biography, William K. Kirk, Washington Gun Law).

NOTE TO COUNSEL (not part of any pleading)

1. **Placeholders.** Every bracketed [. . .] item below is a genuine gap — a fact, party, date, or document that has not yet been supplied or verified — not a stand-in the drafter has simply forgotten to fill in. None should be treated as true or assumed correct.
 2. **Confidence levels.** Each numbered paragraph below is tagged:
 - (C) = Confirmed against a public record or primary source (see the cited footnote, which points back into the Background Report’s own footnotes).
 - (U) = User-asserted, not independently verified.
 - (P) = Placeholder; no specific fact has been supplied at all.
 3. **Known, serious legal-sufficiency problems.** This draft intentionally surfaces — rather than papers over — the same doctrinal problems the Background Report already flagged: no identified predicate acts or “enterprise” for RICO purposes;² no shown proximate cause running from any specific defendant’s specific act to a “business or property” injury;³ no private right of action under RCW ch. 42.52 (Washington ethics law is enforced only by the Executive Ethics Board);⁴ and vote-dilution claims are ordinarily brought as constitutional or Voting Rights Act claims by voters/jurisdictions, not as civil RICO claims.⁵ **This document does not resolve any of those problems — it exists so counsel can see exactly where they sit inside a complaint’s structure.**
 4. **No defendant has been served with, or even shown, any version of this document.** All characterizations of defendants’ conduct are either the plaintiff’s own unverified allegations or drawn from public filings/press by third parties (each footnoted accordingly).
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I. NATURE OF THE ACTION

1. (P) This is a civil action for damages and injunctive relief arising from an alleged pattern of racketeering activity and related misconduct that Plaintiff contends interfered with his business, DOGETech.co, diluted his vote and the votes of similarly situated citizens, and was undertaken in part for the partisan advantage of certain state officials and political committees, in connection with the administration of elections and election mail in Washington State and elsewhere.

²See Background Report at n.7 (18 U.S.C. § 1961(4)–(5); *H.J. Inc. v. Nw. Bell Tel. Co.*, 492 U.S. 229 (1989)).

³See Background Report at n.8 (*Holmes v. Sec. Inv’r Prot. Corp.*, 503 U.S. 258 (1992); *Anza v. Ideal Steel Supply Corp.*, 547 U.S. 451 (2006)).

⁴See Background Report at n.15 (Wash. Rev. Code ch. 42.52).

⁵See Background Report at n.1 (18 U.S.C. § 1964(c); §§ 1961–1963).

2. (U) Plaintiff does not oppose, and is not adverse to, the United States Postal Service or its Ballot Mail for Federal Elections rule; to the contrary, Plaintiff supports that rule as an election-security measure, and portions of this action are intended to rebut, not support, arguments made against USPS by some of the defendants named here in a separate, unrelated proceeding.⁶
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II. JURISDICTION AND VENUE

3. (P) This Court has subject-matter jurisdiction under 28 U.S.C. § 1331 (federal question), because Plaintiff asserts claims under the civil RICO statute, 18 U.S.C. § 1964(c).⁷
4. (P) This Court has supplemental jurisdiction under 28 U.S.C. § 1367 over any state-law claims asserted below, to the extent they arise from the same case or controversy.
5. (P) Venue is proper under 28 U.S.C. § 1391(b) in [DISTRICT TO BE DETERMINED], because a substantial part of the events giving rise to the claims allegedly occurred there and/or one or more defendants reside or may be found there. **Counsel note:** venue cannot be fixed until the specific state defendants and specific compliance-company defendants are identified (see Parts IV.B and IV.C below).
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III. PARTIES

6. (U) Plaintiff Ralph Burton Harris III is an individual residing in [STATE/COUNTY NOT YET SUPPLIED], and is the principal of DOGEtech.co, a business described by Plaintiff as having been in operation for at least two years. **No independent description of DOGEtech.co's business activities, corporate form, or registration has been supplied or located in this research to date; this is needed before venue, standing, or damages can be analyzed.**
7. (P) Defendant(s) [STATE DEFENDANTS]: Plaintiff has stated that “the defendants will be blue states,” but has not yet identified which state or states, in what capacity (the state itself, a named official, or a state agency), or what specific act each is alleged to have taken against Plaintiff or DOGEtech.co.
8. (C) Defendant DNC Services Corporation, doing business as the Democratic National Committee, is a corporation whose formal name is confirmed by multiple federal court filings.⁸ (P) No specific act by the DNC directed at Plaintiff or DOGEtech.co has yet been identified; the DNC's only confirmed connection

⁶See Background Report, Part 4 (operational/technical claims reframed as material to evaluate, not oppose, USPS's position).

⁷See Background Report at n.1 (18 U.S.C. § 1964(c); §§ 1961–1963).

⁸See Background Report at n.6 (*Wilson v. DNC Servs. Corp.*, No. 1:17-cv-00730 (D.D.C.)).

found in this research to date is as a named party (not as a wrongdoer vis-à-vis Plaintiff) in an unrelated voter-roll case, *United States v. Weber*.⁹

9. (P) Defendant(s) [“COMPLIANCE/FUNDRAISING” COMPANIES]: not yet identified by name. A payment-processing/compliance platform used by Democratic campaigns (e.g., ActBlue) has been floated by the drafter as a possible candidate based on the term used, but **this has not been confirmed by Plaintiff and should not be assumed correct.**
10. (U) Defendant K&H Printers is a commercial printing company offering ballot-printing and election-services processing, which its own website states serves counties across the western United States.¹⁰ **No specific act by K&H Printers directed at Plaintiff or DOGEtech.co has been identified;** it is included here because Plaintiff supplied it as a prospective defendant.
11. (U) Defendant Mail King USA is a regional direct-mail marketing company that, per its own website, provides political-mail services in the Seattle/Washington market.¹¹ **No specific act directed at Plaintiff or DOGEtech.co has been identified.**
12. (U) Defendant Lithtex Northwest is a regional direct-mail printing company, per its own website.¹² **No specific act directed at Plaintiff or DOGEtech.co has been identified.**
13. (U) Defendants Runbeck Election Services and Proforma/Midwest Direct were identified by Plaintiff as national ballot-printing industry participants; their existence as such companies is generally known but was not independently re-verified in this research pass.¹³ **No specific act directed at Plaintiff or DOGEtech.co has been identified for either.**
14. **Counsel note:** Plaintiff’s own supplied source material states that official ballot distribution and processing for Seattle/King County is handled directly between King County Elections and USPS, **not** through any of the commercial vendors named in ¶¶ 10–13.¹⁴ This tends to cut against, rather than support, a theory that these vendors personally handled Plaintiff’s or other individual voters’ ballots — it should be squarely confronted, not omitted, before any complaint naming them is drafted.

⁹See Background Report at n.20 (docket, *United States v. Weber*, No. 2:25-cv-09149 (C.D. Cal.)).

¹⁰See Background Report at n.22 (K&H Printers, Mail King USA, Lithtex Northwest company websites).

¹¹See Background Report at n.22 (K&H Printers, Mail King USA, Lithtex Northwest company websites).

¹²See Background Report at n.22 (K&H Printers, Mail King USA, Lithtex Northwest company websites).

¹³See Background Report at n.22 (K&H Printers, Mail King USA, Lithtex Northwest company websites).

¹⁴See Background Report at n.22 (K&H Printers, Mail King USA, Lithtex Northwest company websites).

IV. FACTUAL ALLEGATIONS

A. The 2026 USPS Ballot Mail Rule and *California v. USPS* (background only — not a claim against USPS)

15. (C) On August 26, 2026, the State of California and roughly two dozen other states and the District of Columbia sued the United States Postal Service and named USPS officials in the District of Massachusetts, No. 1:26-cv-13917, challenging USPS's Ballot Mail for Federal Elections rule under the Administrative Procedure Act, Declaratory Judgment Act, and Privacy Act.¹⁵
16. (C) That complaint does not name the DNC as a party, does not plead civil RICO or qui tam/False Claims Act theories, and seeks only declaratory and injunctive relief plus fees and costs — not damages.¹⁶¹⁷
17. (U) A Sept. 10, 2026 news report states that a federal judge issued a preliminary injunction against the rule on Sept. 4, 2026; this has not been independently confirmed against the docket's actual order text.¹⁸
18. (U) Plaintiff contends that the plaintiff states' claims in that case regarding compliance costs are a misrepresentation, because existing USPS Full-Service Intelligent Mail barcode requirements already place barcode-generation burdens on mailers/vendors (such as K&H Printers), not on the states, in order to qualify for automation rate discounts — **not independently verified against the Domestic Mail Manual's text in this research pass.**¹⁹

B. The DOJ voter-roll campaign and Washington's involvement

19. (C) As of January 28, 2026, the U.S. Department of Justice had sued twenty-four states and the District of Columbia, including **Washington**, over access to state voter-registration rolls.²⁰
20. (C) Attorney General Pamela Bondi sent a letter dated January 24, 2026 to Minnesota Governor Tim Walz conditioning an end to ICE/CBP deployment partly on voter-roll access; Minnesota's Secretary of State publicly characterized this as "an apparent ransom."²¹ (U) No comparable letter to a Washington official has yet been located or supplied.
21. (C) In an unrelated case, *United States v. Weber*, No. 2:25-cv-09149 (C.D. Cal.), the Democratic National Committee appeared as a party; that case was dismissed on January 15, 2026.²²

¹⁵See Background Report at n.3 (docket, *California v. U.S. Postal Serv.*, No. 1:26-cv-13917 (D. Mass.)).

¹⁶See Background Report at n.5 (docket nature-of-suit and cause-of-action codes).

¹⁷See Background Report at n.12 (Complaint, *California v. U.S. Postal Serv.*, full-text search for RICO/qui tam/DNC terms returned zero matches).

¹⁸See Background Report at n.21 (Seattle Weekly, Sept. 10, 2026).

¹⁹See Background Report, Part 4, "User's rebuttal theory: the alleged compliance costs."

²⁰See Background Report at n.18 (Senate letter to Att'y Gen. Bondi, Jan. 29, 2026).

²¹See Background Report at n.19 (Minnesota Secretary of State statement, Jan. 25, 2026).

²²See Background Report at n.20 (docket, *United States v. Weber*, No. 2:25-cv-09149 (C.D. Cal.)).

22. (C) A YouTube video published by the Washington Attorney General’s official channel shows a January 26, 2026 press conference by Governor Bob Ferguson and Attorney General Nick Brown.²³ (U) No transcript or specific timestamped statement from that press conference establishing any actionable conduct has yet been supplied; this is a confirmed-authentic video with an unconfirmed evidentiary use.

C. Washington’s ethics-in-public-service law

23. (C) RCW ch. 42.52 prohibits Washington state officers and employees from using their positions for personal gain, RCW § 42.52.020, from receiving special privileges, RCW § 42.52.070, and from using public facilities to assist political campaigns, RCW § 42.52.180.²⁴
24. (P) Enforcement of RCW ch. 42.52 is committed to the Executive Ethics Board via administrative complaint, RCW § 42.52.360, and the statute does not create a private right of action for damages; no specific Washington state officer has yet been identified as having violated a specific provision of RCW ch. 42.52 against Plaintiff.²⁵

D. Plaintiff’s alleged injury

25. (U) Plaintiff alleges his votes, and those of similarly situated citizens, have been diluted. **Vote-dilution theories are ordinarily pursued under the Fourteenth Amendment or the Voting Rights Act by voters or governmental plaintiffs — not under civil RICO — and no specific mechanism of dilution particular to Plaintiff has been identified.**
26. (U) Plaintiff alleges that unspecified defendants “interfered with” DOGEtech.co’s ability “to achieve needed success.” **No specific act, date, defendant, or causal mechanism connecting any named defendant to any specific harm suffered by DOGEtech.co has been supplied.** This is the single largest evidentiary gap in the entire draft: without it, no RICO “business or property” injury and no proximate cause can be pleaded as to any defendant.²⁶
27. (U) Plaintiff states he has spent over two years independently researching Federal Election Campaign Act (FECA) violations by Democratic candidates. This is Plaintiff’s own investigative work product, not itself an injury, and FECA violations are enforced by the Federal Election Commission administratively (with a limited citizen-suit remedy under 52 U.S.C. § 30109(a)(8) only after the FEC fails to act on an administrative complaint) — this is not a RICO or qui tam predicate by itself.

²³See Background Report at n.16 (YouTube video, Jan. 26, 2026 press conference).

²⁴See Background Report at n.15 (Wash. Rev. Code ch. 42.52).

²⁵See Background Report at n.15 (Wash. Rev. Code ch. 42.52).

²⁶See Background Report at n.8 (*Holmes v. Sec. Inv’r Prot. Corp.*, 503 U.S. 258 (1992); *Anza v. Ideal Steel Supply Corp.*, 547 U.S. 451 (2006)).

V. CAUSES OF ACTION

COUNT I – Civil RICO, 18 U.S.C. § 1962(c)

28. (P) Plaintiff repeats and incorporates ¶¶ 1–27.
29. (P) **Missing elements, not yet supplied:** an identified “enterprise” distinct from any individual defendant, 18 U.S.C. § 1961(4); at least two predicate acts within ten years forming a “pattern,” 18 U.S.C. § 1961(5), each independently chargeable under one of RICO’s enumerated predicate statutes (e.g., mail fraud, wire fraud, extortion); and proximate cause running from a specific predicate act to Plaintiff’s specific business-or-property injury.²⁷²⁸ **None of these elements has yet been supplied by Plaintiff for any defendant.** This count cannot presently be pleaded in good faith under Fed. R. Civ. P. 11.

COUNT II – Civil RICO Conspiracy, 18 U.S.C. § 1962(d)

30. (P) Plaintiff repeats and incorporates ¶¶ 1–29. Same missing- elements problem as Count I, plus an unidentified agreement among two or more defendants to participate in the alleged enterprise.

COUNT III – Qui Tam / False Claims Act, 31 U.S.C. § 3729 *et seq.* (placeholder only)

31. (P) No facts suggesting any defendant submitted a false claim for payment to the United States government have been identified. **This count is included only as a placeholder in case Plaintiff’s FEC research (¶ 27) develops a specific false-certification theory; it is not currently supported and should likely be omitted.**²⁹

COUNT IV – Violation of RCW ch. 42.52 (placeholder only)

32. (P) As noted at ¶ 24, RCW ch. 42.52 is enforced administratively and has no private right of action for damages. **This count, as a civil damages claim, is not viable as currently understood and would need to be reframed – if at all – as an administrative complaint to the Executive Ethics Board, not a count in a federal civil complaint.**³⁰

COUNT V – Vote Dilution (placeholder only)

33. (P) As noted at ¶ 25, this theory is conventionally a Fourteenth Amendment or Voting Rights Act claim, typically brought by voters or jurisdictions rather than by an individual alleging business injury. **Whether Plaintiff has standing to bring such a claim in his individual capacity, and whether it belongs in this action at all (as opposed to a separate action), is a threshold question for counsel.**

²⁷See Background Report at n.7 (18 U.S.C. § 1961(4)–(5); *H.J. Inc. v. Nw. Bell Tel. Co.*, 492 U.S. 229 (1989)).

²⁸See Background Report at n.8 (*Holmes v. Sec. Inv’r Prot. Corp.*, 503 U.S. 258 (1992); *Anza v. Ideal Steel Supply Corp.*, 547 U.S. 451 (2006)).

²⁹See Background Report at n.2 (31 U.S.C. §§ 3729–3733).

³⁰See Background Report at n.15 (Wash. Rev. Code ch. 42.52).

VI. PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests — **subject to counsel’s determination of which counts, if any, can be pleaded consistent with Fed. R. Civ. P. 11** — that the Court:

- (a) Award compensatory damages in an amount to be determined at trial;
- (b) Award treble damages and reasonable attorneys’ fees under 18 U.S.C. § 1964(c), if Count I or II is pleaded and proven;
- (c) Enter injunctive relief as appropriate; and
- (d) Award such other and further relief as the Court deems just and proper.

JURY DEMAND

Plaintiff demands a trial by jury on all issues so triable.

[Signature block reserved for counsel of record.]

Appendix — Evidentiary-gap summary

Count/Paragraph	Status	What is missing
Count I (RICO § 1962(c))	Not pleadable	Enterprise, predicate acts, proximate cause
Count II (RICO § 1962(d))	Not pleadable	Same as Count I, plus an agreement
Count III (Qui tam/FCA)	Speculative placeholder	Any false claim to the government
Count IV (RCW 42.52)	Wrong forum/remedy	No private right of action exists
Count V (Vote dilution)	Standing/fit unresolved	Individual standing theory, correct cause of action
Defendant: blue state(s)	Unidentified	Which state(s), which officials, which acts
Defendant: DNC	No act identified	Any specific conduct directed at Plaintiff
Defendant: compliance/fundraising co.	Unidentified	Company name(s) and conduct
Defendants: printing/mail vendors	No act identified	Any specific conduct directed at Plaintiff
DOGEtech.co injury	Undescribed	What the business does; what happened; when; by whom

This table, more than any single paragraph above, is the honest summary of where this matter currently stands: **the defendant list and the legal theories are asserted, but the specific facts connecting any named defendant to a specific injury suffered by Plaintiff have not yet been supplied.** Filling in this table — not polishing the prose above — is the necessary next step before any complaint resembling this draft could responsibly be filed.

Footnotes